

The burden thus shifts to Plaintiff to present evidence of a disputed material issue of fact. See *Browne v. Turner Construction Co.* (2005) 127 Cal. App. 4th 1334, 1339–1340. Generally, in the realm of medical malpractice cases, this is accomplished by plaintiffs submitting their own expert’s opinions regarding the standard of care, thus paving the road for the classic “battle of the experts.” Plaintiff has presented no expert testimony to negate the opinion of Dr. Friedman. The only evidence provided by Plaintiff is her own declaration to which Plaintiff attached medical records and text messages. This evidence does not raise a triable issue of material fact. The Court notes that Plaintiff alleges that fraud was committed with respect to her medical records, however, fraud is not alleged in the Complaint.

“ ‘The purpose of a summary judgment proceeding is to permit a party to show that material factual claims arising from the pleadings need not be tried because they are not in dispute.’ [Citation.] ‘The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues: the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.’ [Citations.] The complaint measures the materiality of the facts tendered in a defendant’s challenge to the plaintiff’s cause of action. [Citation.]” (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381, 282 Cal.Rptr. 508.) A “plaintiff cannot bring up new, unpleaded issues in his or her opposing papers. [Citation.]” (*Government Employees Ins. Co. v. Superior Court* (2000) 79 Cal.App.4th 95, 98–99, fn. 4, 93 Cal.Rptr.2d 820.) A plaintiff wishing “to rely upon unpleaded theories to defeat summary judgment” must move to amend the complaint before the hearing. (*Leibert v. Transworld Systems, Inc.* (1995) 32 Cal.App.4th 1693, 1699, 39 Cal.Rptr.2d 65; see also *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18, 272 Cal.Rptr. 227.)

*Knapp v. Doherty* (2004) 123 Cal. App. 4th 76, 90.

Therefore, any issues of alleged fraud are not properly before the Court. The Court finds that there is no triable issue of material fact as to the breach of the duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise.

The Motion for Summary Judgment is **GRANTED**. Defendants provided a proposed Order that will be executed by the Court. Today’s Mandatory Settlement Conference and the trial date of April 15, 2025 are vacated. The matter will be on calendar on **Monday, April 28, 2025 at 9:00 a.m. in Department 63** for status of judgment. Defendants are to submit a proposed judgment consistent with the Court’s ruling. The future hearing date will vacated if judgment is entered prior to the hearing.

#### **JAJUGA, ET AL. VS. FCA US LLC**

**Case Number: 24CV-0205061**

**Tentative Ruling on Motions to Compel Further Responses:** Plaintiffs Ashley Jajuga and Cindy Jajuga move to compel Defendant FCA US, LLC to provide further responses to Special Interrogatories and Requests for Production of Documents. Replies are required to be filed at least five court days before the hearing. Plaintiffs filed their replies on March 5, 2025, only two court days prior to the hearing. Based on the late filings and to ensure that both the Court and the Defendant have sufficient time to review the late filed replies, both motions are continued one week to **Monday, March 17, 2025, at 8:30 a.m. in Department 63**. **No appearance is necessary on today’s calendar.**

#### **KING, ET AL. VS. TYNER, ET AL.**

**Case Number: 23CV-0202922**

**Tentative Ruling on Order to Show Cause Re: Sanctions:** An Order to Show Cause Re: Sanctions issued January 27, 2025 to Plaintiffs, Christine King and Paul King, and Plaintiff’s Counsel for failure to appear at the January 21, 2025 hearing and failure to provide the Court with a status update. Plaintiffs submitted a Request for Dismissal, subsequently filed by the clerks and entered on January 17, 2025, dismissing the entire action of all

parties and all causes of action without prejudice. Defendants have not yet appeared in the action. The Order to Show Cause is **DISCHARGED. No appearance is necessary on today's calendar.**

**MOOK, ET AL. VS. JEANTETTE**

**Case Number: 22CV-0200414**

**Tentative Ruling on Motion for Summary Judgment:** Plaintiffs Tina Mook and Steven Mook move for summary judgment on the Complaint filed against Defendant Jacqueline Jeantette on August 9, 2022. Despite being timely noticed, Defendant did not file an Opposition.

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

Plaintiffs' Complaint contains a single cause of action for conversion.

“Conversion is generally described as the wrongful exercise of dominion over the personal property of another.[Citation.] The basic elements of the tort are (1) the plaintiff's ownership or right to possession of personal property; (2) the defendant's disposition of the property in a manner that is inconsistent with the plaintiff's property rights; and (3) resulting damages. [Citation.]” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119, 55 Cal.Rptr.3d 621.) “Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant's good faith, lack of knowledge, and motive are ordinarily immaterial.” (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066, 80 Cal.Rptr.2d 704.)

*Regent Alliance Ltd. vs Rabizadeh* (2014) 231 Cal. App. 4th 1177, 1181.

In this matter, Plaintiffs' Requests for Admission, Set One were ordered deemed admitted against Defendant on October 21, 2024. Defendant admitted that Plaintiff were guests at her property at the time of the fire that damaged Plaintiffs' property, that Defendant made an insurance claim for the replacement value of Plaintiffs' property, and Defendant kept the insurance proceeds for Plaintiffs' property. Defendant also admitted that Plaintiffs asked her to deliver the \$44,796.86 that was meant to replace their property, but Defendant refused and converted the insurance proceeds for Defendant's own benefit. Finally, Defendant admitted that she has no defense to the claim of Plaintiffs that Defendant converted for her personal benefit \$44,796.86 that was meant to replace Plaintiffs' property.

Plaintiffs have established each element of conversion. The burden shifts to Defendant to show that a triable issue of material fact exists. Defendant did not file an Opposition and has not raised a triable issue of material fact.

The Motion for Summary Judgment is **GRANTED**. Plaintiffs provided a proposed Order that will be modified to reflect the Court's ruling. The trial date of April 15, 2025 is vacated. The matter will be on calendar for review regarding status of judgment on **Monday, April 28, 2025 at 9:00 a.m. in Department 63**. If a judgment is on file prior to the continued hearing date, the continued hearing date will be vacated.